

TENTATIVE RULINGS FOR April 24, 2026
Department S29 - Judge Nicole Quintana Winter

This court follows California Rules of Court, rule 3.1308(a) (1) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. or 7:00 p.m. on the court day immediately before the hearing.

If you wish to submit on the ruling, call the Court, check-in and state that you will be submitting on the Tentative, and your continued appearance is not necessary. However, you must check in. If both sides do not appear, the tentative will simply become the ruling. If any party submits on the tentative, the Court will not alter the tentative and it will become the ruling. If one party wants to argue, Court will hear argument but will not change the tentative. If the Court does decide to modify tentative after argument, then a further hearing for oral argument will be reset for both parties to be heard at the same time by the Court. This procedure is meant to minimize your waiting time in Court.

FAST POST (SHANGHAI) LOGISTICS CO, LTD.

v.

B612 TIMA INC; and DOES 1-10, inclusive.
CIVSB2431751

Motion: Judgment on the Pleadings
Moving Parties: Cross-Defendant Best Bay Logistics, Inc.
Responding Party: Plaintiff Fast Post Shanghai Logistics and Defendant B612 Tima, Inc.

RELEVANT PROCEDURAL/FACTUAL BACKGROUND

On October 18, 2024, Plaintiff Fast Post Shanghai Logistics (“Fast Post”) initiated this action against Defendant B612 Tima, Inc. (“B612”) alleging causes of action for 1) Breach of Contract, 2) Common Counts, 3) Statutory Liability, and 4) Negligence. Fast Post generally alleges that it entrusted B612 with its goods that were then lost or stolen while being transported.

On January 16, 2025, B612 filed a cross-complaint against Cross-Defendant Best Bay Logistics, Inc. (hereinafter, “Best Bay”). An amended cross-complaint was filed May 13, 2025, and on July 14, 2025, B612 filed the operative second amended cross-complaint (“SACC”), alleging causes of action for 1) negligent hiring and 2) breach of contract. As alleged, Fast Post hired B612 to transport a Fast Post’s Shipment, which B612 was storing, and, “[a]t the behest of” Fast Post, “B612 contacted Best Bay to act as a broker to arrange for the safe and competent transport of the Shipment from B612’s warehouse in Ontario, California to” Texas. (SACC ¶6.) On or about February 4, 2023, Best Bay’s Logistics Coordinator agreed to transport the shipment, and the drivers Best Bay hired loaded the shipment. (SACC ¶¶7-8.) B612, however, was informed that the Shipment never arrived because Best Bay lost track of the load and control of its hired drivers, and the entire Shipment was either lost or stolen. (SACC ¶11.)

On April 8, 2026¹, Best Bay filed the instant Motion for Judgment on the Pleadings, arguing that both Fast Post and B612's claims have already been adjudicated in federal court. On April 16, Fast Post filed an opposition, arguing that 1) the claims brought here are different and distinct from any brought in the federal action, and 2) that either way, Best Bay cannot file a motion as to Fast Post's complaint because it is only a party to B612's cross-complaint. B612 filed a separate opposition, arguing that Fast Post should not have filed its complaint against it, but because it did, any new liability would be due to Best Bay's alleged failures. On April 22, Best Bay filed its reply.

DISCUSSION

I. Statement of the Law.

a. Legal Standard - Motion for Judgment on the Pleading

A motion for judgment on the pleadings may be made by any party to the action after the time to demurrer has expired. (Code Civ. Proc., §438, subds. (b)(1) and (f); *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 548.) If the moving party is the plaintiff, then a motion for judgment on the pleadings can only be made if "the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint." (Code Civ. Proc., § 438, subd. (c)(1)(A).)

"A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed." (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999; *see also* Code Civ. Proc., §438, subd. (d).) "As with a demurrer, '[t]he grounds for a motion for judgment on the pleadings must appear on the face of the complaint or from a matter of which the court may take judicial notice.'" (*Lee v. Kotyluk* (2021) 59 Cal.App.5th 719, 728, citing to *Eckler v. Neutrogena Corp.* (2015) 238 Cal.App.4th 433, 439.)

Although the trial court must accept as true all material facts properly pleaded, it "does not consider conclusions of law or fact, opinions, speculation, or allegations contrary to law or facts that are judicially noticed." (*Stevenson Real Estate Services, Inc. v. CB Richard Ellis Real Estate Services, Inc.* (2006) 138 Cal.App.4th 1215, 1219.)

Similar to a demurrer, Code of Civil Procedure, section 439 requires the moving party to "meet and confer in person or by telephone" with the opposing party "for the purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings." (Code Civ. Proc. § 439.) Section 439, however, does not apply to "[a] proceeding in forcible entry, forcible detainer, or unlawful detainer." (Code Civ. Proc., § 439, subd. (d)(2).)

A trial court's decision on a motion for judgment on the pleadings is reviewed de novo. (*Lee v. Kotyluk, supra*, 59 Cal.App.5th at p. 728.)

II. Analysis.

a. Judicial Notice.

As with a demurrer, "the court may consider matters which may be judicially noticed, including court records." (*Barker v. Hull* (1987) 191 Cal.App.3d 221, 224.) Here, Best Bay requests judicial notice as to twelve separate pleadings/filings in Case No. 5:23-cv-01628-JGB-DTB, a federal action in the Central District of California. Such records are eligible for judicial notice pursuant to California Code of Evidence section 452, subdivision (d), and as such, Best Bay's request for judicial notice is granted.

¹ The motion was previously filed on February 13, 2026, but was refiled and re-calendared.

b. Summary of Judicially Noticed Documents.

Best Bay's primary argument is that the issues before the Court have already been litigated in federal Court such that both complaints, Fast Post's complaint against B612 and B612's cross-complaint against Best Bay should not move forward. Per the documents put forward by Best Bay, Fast Post filed a complaint in San Bernardino Superior Court (case number CIVSB2315023) against B612 and Best Bay, based on the same set of facts, that was then removed to federal court. Best Bay and B612 subsequently filed motions for summary judgment, which were then granted.

c. Best Bay's Motion Against Fast Post.

Regardless of the argument before the Court, Best Bay cannot successfully bring a motion for judgment on the pleadings against the underlying complaint brought by Fast Post because Best Bay is not a party to that underlying complaint. The underlying complaint in this current action is only brought by Fast Post against B612, and as such, Best Bay cannot bring a motion for judgment on the pleadings against Fast Post's complaint.

d. Motion Against B612's Cross-Complaint.

i. Claim Preclusion (*Res Judicata*) and Issue Preclusion.

A motion for judgment on the pleadings is similar to a general demurrer, and the trial court treats the pleadings as admitting all material facts properly pleaded, including evidence outside the pleadings which the trial court considered without objection. (*Colombo v. Kinkle, Rodiger & Spriggs* (2019) 35 Cal.App.5th 407, 415.)

"'Res judicata' describes the preclusive effect of a final judgment on the merits. Res judicata, or claim preclusion, prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them." (*Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 896.) "Res judicata bars a subsequent claim when '(1) the decision in the prior proceeding is final and on the merits; (2) the present proceeding is on the same cause of action as the prior proceeding; and (3) the parties in the present proceeding or parties in privity with them were parties to the prior proceeding.' [Citation.] Upon satisfaction of these conditions, claim preclusion bars 'not only ... issues that were actually litigated but also issues that could have been litigated.'" (*Colombo v. Kinkle, Rodiger & Spriggs, supra*, 35 Cal.App.5th at 415-416, quoting *Planning & Conservation League v. Castaic Lake Water Agency* (2009) 180 Cal.App.4th 210, 226.)

Here, based on the judicially noticed documents, Fast Post brought the same four claims against B612 and Best Bay in the previous action, and the claims were removed to federal court. In this action, Fast Post named both B612 and Best Bay as defendants, and B612 then filed a cross-complaint against Best Bay for five causes of action, including both negligent hiring and breach of contract. (Ex. 9.) Best Bay then filed a motion to dismiss B612's cross-complaint, but importantly, the motion to dismiss was never heard on the merits, with the parties instead signing a stipulation for B612 to dismiss the federal cross-complaint against Best Bay *without prejudice*. As stated by the California Supreme Court, "for purposes of applying the doctrine of res judicata, however, **a dismissal with prejudice** is the equivalent of a final judgment on the merits, barring the entire cause of action." (*Boeken v. Philip Morris USA, Inc.* (2010) 48 Cal.4th 788, 793 (emphasis added).) Here, we have no such final judgment because the dismissal is without prejudice.

Similarly, even though Best Bay argues issue preclusion in the alternative to res judicata, it also requires a final judgment. As stated by the California Supreme Court, "[i]ssue preclusion prohibits the relitigation of issues argued and decided in a previous case, even if the second suit raises different causes of action. [Citation.] Under issue preclusion, the prior

judgment conclusively resolves an issue actually litigated and determined in the first action.” (*DKN Holdings LLC v. Faerber* (2015) 61 Cal.4th 813, 824 (emphasis in original).)

As such, even though the issues are the same, and the parties are the same, and Fast Post may have reached a final judgment with B612, B612 did not reach a final judgment with Best Bay. Thus, the cross-complaint against Best Bay cannot be dismissed based on the theories of issue or claim preclusion.

ii. ***Federal Preemption.***

A motion for judgment on the pleadings, similar to a “demurrer[,] is an appropriate vehicle to secure a dismissal of a state law action based on federal law preemption.” (*Ball v. Gte Mobilnet* (2000) 81 Cal.App.4th 529, 535.)

Best Bay argues that the cross-claims against it are preempted by the Federal Aviation Administration Authorization Act (“FAAAA”). The FAAAA’s express preemption provision provides, in relevant part, that “States may not enact or enforce a law . . . related to a price, route, or service of any motor carrier . . . , broker, or freight forwarder with respect to the transportation of property.” (49 U.S.C. § 14501(c)(1).) The FAAAA, however, also contains a caveat, stating that the preemption “shall not restrict the safety regulatory authority of a State with respect to motor vehicles.” (49 U.S.C. § 14501, subd. (c)(2)(A).)

In the SACC, B612 alleges Best Bay is a “broker” used to complete “the safe and competent transport of the Shipment from B612’s warehouse in Ontario, California to Hoymiles in Plano Texas.” (SACC ¶6.) As such, based on B612’s own allegations, Best Bay is a broker and its claims against Best Bay may be preempted by the FAAAA, unless an exception applies.

As to B612’s negligent hiring claim, Best Bay cites to district court cases stating that negligent claims are preempted under the FAAAA. Although the Ninth Circuit has held that the safety regulatory authority of a State can encompass common-law tort claims, such that preemption would not apply, (*Miller v. C.H. Robinson Worldwide, Inc.* (9th Cir. 2020) 976 F.3d 1016, 1026), it has also limited that holding, concluding that “a negligence claim that seeks to hold a broker (or motor carrier) liable at the point at which it provides a service to its customers is directly (and significantly) related to rates, routes or services, and thus preempted.” (*California Trucking Assn. v. Bonta* (9th Cir. 2020) 996 F.3d 644, 657.) That is the situation here; B612 is seeking to hold Best Bay liable for the service it was meant to provide to B612, and thus its negligence claim is preempted.

It’s breach of contract claim, however, is not. “[O]rdinarily, breach of contract claims are not considered preempted by the FAAAA”. (*Suzuyo Am., Inc. v. Year-Round Enters., Inc.* (C.D. Cal. July 17, 2025, No. 2:24-cv-07689-CAS-SSCx) 2025 U.S. Dist. LEXIS 137630, at *17-18²; see also *Custom Stud, Inc. v. Meadow Lark Agency, Inc.* (D. Minn. 2021) 566 F. Supp. 3d 950, 954, stating that “[w]hile the FAAAA broadly preempts state laws that would regulate interstate transportation of goods, it does not preempt breach of contract claims limited to ‘the parties’ bargain, with no enlargement or enhancement based on state laws or policies external to the agreement,’” quoting *Am. Airlines, Inc. v. Wolens* (1995) 513 U.S. 219, 233.)

Therefore, the Court grants the motion for judgment on the pleadings as to B612’s negligent hiring claim only, because it is preempted by the FAAAA. The Court does grant the motion regarding the breach of contract claim to remain.

² Unpublished federal district court decisions are “citable notwithstanding California Rules of Court rule 977, which only bars citation of unpublished *California* opinions. Therefore, [unpublished federal district court decisions] are citable as persuasive, although not precedential, authority.” (*City of Hawthorne ex rel. Wohlner v. H&C Disposal Co.* (2003) 109 Cal.App.4th 1668, 1678, fn. 5 (emphasis in original).)

RULING

The Court rules as follows:

1. Grants Best Bay's request for judicial notice;
2. Grants Best Bay's motion for judgment on the pleadings only as to B612's negligent hiring claim, finding it preempted by the FAAAA;
3. Denies the motion as to B612's breach of contract claim;
4. Orders Best Bay, as the prevailing party, to give formal notice of the Court's ruling.

Dated: April 26, 2026

Judge Nicole Quintana Winter

ARTHUR DIAS JR,

v.

CORINA MACIAS
CIVSB2603955

Motion: Demurrer to Complaint
Moving Parties: Defendant Corina Macias
Responding Party: None

DISCUSSION

Meet and Confer

Under Code of Civil Procedure section 430.41, subdivision (a), before filing a demurrer, the objecting party shall meet and confer with the opposing party for the purpose of determining whether an agreement can be reached to resolve the objections to the pleading. The parties should meet and confer at least five days before the responsive pleading is due. The meet and confer shall be in person, by telephone, or by video conference. (Code Civ. Proc., § 430.41, subd. (a).)

In support of the demurrer, Counsel for Defendant attests that he attempted to meet and confer with Plaintiff, however, Plaintiff hung up on Counsel. After, Counsel sent Plaintiff a letter in an attempt to further the meet and confer but Plaintiff did not respond. The Court finds that the moving party has complied with the meet and confer requirement.

Statement of the Law.

A demurrer challenges defects that appear on the face of the pleading, which includes incorporated exhibits, or matters that are judicially noticeable, but nothing else. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*); *Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) When evaluating a demurrer, the court reasonably interprets the pleading by reading it as a whole and its parts in their context. (*Blank, supra*, 39 Cal.3d at p. 318.) The material facts that are properly pled are assumed true for purposes of a demurrer, but contentions, deductions, or conclusions of fact or law are not assumed true. (*Ibid.*) Whether a plaintiff can prove the allegations or the difficulty in proving the allegations is of no concern. (*Concerned Citizens of Costa Mesa, Inc. v. 32nd Dist. Agricultural Assn.* (1986) 42 Cal.3d 929, 936.) The complaint is to be liberally construed. (Code Civ. Proc., §452.)

A demurrer predicated on insufficient facts to constitute a cause of action (Code Civ. Proc., § 430.10, subd. (e)) should be granted only when the facts alleged on the face of the complaint fail to state any valid claim entitled to the plaintiff. (*New Livable California v. Association of Bay Area Governments* (2020) 59 Cal.App.5th 709, 714.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank, supra*, 39 Cal.3d at p. 318.) On the other hand, “if it appears from the complaint ... there is no reasonable possibility that an amendment could cure the complaint’s defect,” sustaining without leave to amend is permissible. (*Heckendorn v. City of San Marino* (1986) 42 Cal.3d 481, 486.)

A pleading also may be challenged on demurrer for uncertainty. (Code Civ. Proc., § 430.10, subd. (f).) This challenge generally is sustained only where the complaint is unfairly vague or so ambiguous or unintelligible that the defendant cannot reasonably respond i.e., determine the issues to be admitted or denied. (*Khoury v. Maly’s of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616)

(*Khoury*).) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Ibid.*)

Analysis.

Pacific demurs as to each cause of action on the grounds they fail state sufficient facts to constitute a cause of action.

First Cause of Action for Breach of Contract

The elements for a breach of contract claim are: (1) the existence of a contract between the parties, (2) the plaintiff’s performance or excuse for non-performance, (3) the defendant’s breach; and (4) the resulting damage. (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186; *Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1178.)

“A written contract may be pleaded either by its terms—set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference—or by its legal effect. [Citation.] To plead a contract by its legal effect, plaintiff must ‘allege the substance of its relevant terms. This is more difficult, for it requires a careful analysis of the instrument, comprehensiveness in statement, and avoidance of legal conclusions.’ [Citation.]” (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1489.) “Facts alleging a breach, like all essential elements of a breach of contract cause of action, must be pleaded with specificity. [Citations.]” (*Levy v. State Farm Mutual Automobile Ins. Co.* (2007) 150 Cal.App.4th 1, 5.)

Defendants contend that the Complaint fails to attach the contract or set forth its terms in the contract.

On its face, the Court finds that the Complaint fails to state whether the contract is written, oral, or implied by conduct. The Complaint also does not attach a copy of the written contract nor does it set forth the contract’s terms verbatim in the pleading. Such deficiencies are enough to sustain a demurrer to a contract cause of action. (*Clarence Matthew Otworth v Southern Pacific Transportation Company*, (1985), 166 Cal.App.3d 452, 459.) It is likely that Plaintiff may be able to cure these deficiencies, particularly given the allegations Complaint regarding the breach of contract claim. Therefore, the Court sustains the demurrer to the first cause of action with leave to amend.

Second Cause of Action for Ejectment

Ejectment is the remedy for an owner of a property to recover possession against one who unlawfully occupies the property. (*Paap v. Von Helmholt* (1960) 185 Cal.App.2d 823, 829.) It is a cause of action that allows for the awarding of possession of property to the party with rightful title and right of possession. (*Ibid.*) The plaintiff must show (a) the entitlement to present possession, and (b) deprivation of the right of possession. (*McCarthy v. Brown* (1896) 113 Cal. 15, 18; *Montgomery v. Santa Ana Westminster Railway Company* (1894) 104 Cal. 186, 197.)

Here, the Complaint fails to state the basis for Plaintiff’s entitlement to presently possess the property at issue. In addition, the Complaint fails to state how Plaintiff has been deprived of the right of possession. Therefore, the Court sustains the demurrer to the second cause of action with leave to amend.

Third Cause of Action for Declaratory Relief

The purpose of declaratory relief is to set controversies at rest before they lead to repudiation of obligations, invasion of rights or commission of wrongs. (*Env’t Def. Project of Sierra Cnty. v. Cnty. of Sierra* (2008) 158 Cal.App.4th 877, 884 (*Sierra Cnty.*).)

To qualify for declaratory relief under Code of Civil Procedure section 1060, two essential elements are necessary: 1) a proper subject of declaratory relief and 2) an actual controversy involving justiciable questions relating to the rights or obligations of a party. (*Lee v. Silveira* (2016) 6 Cal.App.5th 527, 546 (*Lee*).) The “actual controversy” language encompasses a probable future controversy relating to the legal rights and duties of the parties. (*Lee, supra*, 6 Cal.App.5th at p. 546.)

“One cannot analyze requested declaratory relief without evaluating the nature of the rights and duties that plaintiff is asserting, which must follow some recognized or cognizable legal theories that are related to subjects and requests for relief that are properly before the court.” (*D. Cummins Corp. v. United States Fid. & Guar. Co.* (2016) 246 Cal.App.4th 1484, 1489 (*D. Cummins*).)

A claim for declaratory relief must provide specific facts, as opposed to conclusions of law, which show a controversy of concrete actuality. (*Jessin v. Shasta County* (1969) 274 Cal.App.2d 737, 743-744; *Jenkins v. JPMorgan Chase Bank, N.A.* (2013) 216 Cal.App.4th 497, 514, disapproved on other grounds by *Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 939.) In the context of a demurrer, the court will evaluate whether the factual allegations of the complaint for declaratory relief reveal that an actual controversy exists between the parties. (*D. Cummins, supra*, 246 Cal.App.4th at p. 1489.)

Here, it is not yet clear that a controversy exists on the face of the complaint because the third cause of action is dependent on the pleading of the first two causes of actions and the complaint as a whole. Therefore, the Court sustains the demurrer to the third cause of action with leave to amend.

RULING

The Court rules as follows:

1. Sustains the demurrer in its entirety with leave to amend;
2. Orders Plaintiff to file the First Amended Complaint within 30 days of the Court’s final ruling; and
3. Orders Defendant, as the prevailing party, to give formal notice of the Court’s ruling.

Dated: April 26, 2026

Judge Nicole Quintana Winter

N.J. a minor, by and through his guardian ad
litem, Melvin L. Friedland,

v.

County of San Bernardino, et. al.
CIVSB2520353

Motion: Demurrer to Cross Complaint
Moving Parties: Cross Defendant Humble Homes Foster Family Agency, Inc.
Responding Party: None

DISCUSSION

Meet and Confer

Under Code of Civil Procedure section 430.41, subdivision (a), before filing a demurrer, the objecting party shall meet and confer with the opposing party for the purpose of determining whether an agreement can be reached to resolve the objections to the pleading. The parties should meet and confer at least five days before the responsive pleading is due. The meet and confer shall be in person, by telephone, or by video conference. (Code Civ. Proc., § 430.41, subd. (a).)

In support of the demurrer, Counsel for Cross Defendant attests that the parties to the motion did engage in a verbal conversation regarding the demurrer. Therefore, the Court finds that the moving party has satisfied the meet and confer requirement.

APPLICABLE LAW AND ANALYSIS

Demurrer

Standard of Review

The function of a demurrer is to test the legal sufficiency of the challenged pleading. (*Kendrick v. City of Eureka* (2000) 82 Cal.App.4th 364, 367; *Hernandez v. City of Pomona* (1996) 49 Cal.App.4th 1492, 1497.) Generally, in testing a pleading against a demurrer, the facts alleged in the pleading are deemed true, however improbable they may be. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) The court assumes the truth of all material facts that have been properly pleaded, of facts that may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.)

General Demurrer

All that is necessary as against a general demurrer is to plead facts showing that the plaintiff may be entitled to some relief. In passing upon the sufficiency of a pleading, its allegations must be liberally construed with a view to substantial justice between the parties.” (*Fundin v. Chicago Pneumatic Tool Co.* (1984) 152 Cal.App.3d 951, 955; *Michaelian v. State Compensation Insurance Fund* (1996) 50 Cal.App.4th 1093, 1104-1105.)

A demurrer for failure to state a cause of action should be sustained only where the facts alleged on the face of the complaint fail to state any valid claim entitling the plaintiff to relief. The plaintiff may be mistaken as to the nature of the case or the legal theory on which he or she can prevail, but if the essential facts of some valid cause of action are alleged, the complaint is good against a general demurrer. (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 572.)

Special Demurrer

A complaint may also be challenged on demurrer for uncertainty. (Code Civ. Proc., § 430.10, subd. (f).) Demurrers for uncertainty are not favored, and this challenge is generally sustained only where the complaint is so ambiguous or unintelligible the defendant cannot reasonably respond. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.)

A special demurrer for uncertainty lies only where the complaint is so poorly drafted that the defendant cannot reasonably respond. That is, the defendant cannot reasonably determine what issues must be admitted or denied or what claims are asserted against him. (*Ibid.*) (Internal citations omitted.) Where it is alleged that a pleading is uncertain, the movant must specify how or why the pleading is uncertain, and where such uncertainty appears in the face of the pleading under attack. (*Fenton v. Groveland Comm. Services Dist.* (1982) 135 Cal.App.3d 797, 809 [overruled on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300, 328].)

Leave to Amend

Generally, it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment.” (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) "Liberality in permitting amendment is the rule; if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) This does not mean that leave to amend should always be granted. “Leave to amend should be denied where the facts are not in dispute and the nature of the claim is clear, but no liability exists under substantive law.” (*Lawrence v. Bank of America* (1985) 163 Cal.App.3d 431, 436.)

Analysis

First Cause of Action – Equitable Indemnity

It is well-settled in California that equitable indemnity is only available among *tortfeasors* who are jointly and severally liable for the plaintiff's injury. (*Leko v. Cornerstone Bldg. Inspection Service* (2001) 86 Cal.App.4th 1109, 1115, 103 Cal.Rptr.2d 858; *Munoz v. Davis* (1983) 141 Cal.App.3d 420, 425, 190 Cal.Rptr. 400.) With limited exception, there must be some basis for tort liability against the proposed indemnitor. (*Munoz v. Davis, supra*, 141 Cal.App.3d at p. 425, 190 Cal.Rptr. 400.) “Generally, it is based on a duty owed to the underlying plaintiff [citations], although vicarious liability [citation] and strict liability [citation] also may sustain application of equitable indemnity. In addition, implied contractual indemnity between the indemnitor and the indemnitee can provide a basis for equitable indemnity. [Citation.]” (*BFGC Architects Planners, Inc. v. Forcum/Mackey Construction, Inc.* (2004) 119 Cal.App.4th 848, 852, 14 Cal.Rptr.3d 721.)²

Stop Loss Ins. Brokers, Inc. v. Brown & Toland Med. Grp., (2006) 143 Cal. App. 4th 1036, 1040–41.

Here, the Cross Complaint at issue fails to states the duties owed by the parties at issue and a clearer statement on the face of the Cross Complaint as to basis of tort liability against the proposed indemnitor. Therefore, the Court sustains the demurrer with leave to amend. As the Court has sustained the demurrer on the failure to state sufficient facts to support a cause of action, the Court will not address Cross Defendant's other arguments as to the First Cause of Action.

Second Cause of Action for Equitable Contribution

Cross-Complainants' equitable contribution claim alleges they are entitled to a pro rata contribution from Cross-Defendants. Code of Civil Procedure section 875, subdivision (a), states: "[w]here a money judgment has been rendered jointly against two or more defendants in a tort action there shall be a right of contribution among them as hereinafter provided." Case law is clear that this statute is conditional; a money judgment rendered jointly against two or more defendants must exist before either may assert a right to contribution from the other. (*General Electric Co. v. State of Cal. Ex rel. Dept. Pub. Wks.* (1973) 32 Cal.App.3d 918, 925 (*General Electric*)). If the condition of the statute has not been met, the cross-complaint states no cause of action for contribution. (*General Electric, supra*, 32 Cal.App.3d at p. 926.)

Cross-Complainants have not alleged that a money judgment has been rendered against themselves and other Cross-Defendants. As such, they have not stated a claim for equitable contribution. Given that this case is still proceeding and no judgment has yet issued, it is not possible for Cross-Complainants to amend their pleading to allege the necessary element of a money judgment. Therefore, leave to amend would be futile.

Therefore, the Court sustains demurrer to the third cause of action for equitable contribution without leave to amend.

Third Cause of Action – Declaratory Relief

The purpose of declaratory relief is to set controversies at rest before they lead to repudiation of obligations, invasion of rights or commission of wrongs. (*Env't Def. Project of Sierra Cnty. v. Cnty. of Sierra* (2008) 158 Cal.App.4th 877, 884 (*Sierra Cnty.*)).

To qualify for declaratory relief under Code of Civil Procedure section 1060, two essential elements are necessary: 1) a proper subject of declaratory relief and 2) an actual controversy involving justiciable questions relating to the rights or obligations of a party. (*Lee v. Silveira* (2016) 6 Cal.App.5th 527, 546 (*Lee*)). The "actual controversy" language encompasses a probable future controversy relating to the legal rights and duties of the parties. (*Lee, supra*, 6 Cal.App.5th at p. 546.)

"One cannot analyze requested declaratory relief without evaluating the nature of the rights and duties that plaintiff is asserting, which must follow some recognized or cognizable legal theories that are related to subjects and requests for relief that are properly before the court." (*D. Cummins Corp. v. United States Fid. & Guar. Co.* (2016) 246 Cal.App.4th 1484, 1489 (*D. Cummins*)).

A claim for declaratory relief must provide specific facts, as opposed to conclusions of law, which show a controversy of concrete actuality. (*Jessin v. Shasta County* (1969) 274 Cal.App.2d 737, 743-744; *Jenkins v. JPMorgan Chase Bank, N.A.* (2013) 216 Cal.App.4th 497, 514, disapproved on other grounds by *Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 939.) In the context of a demurrer, the court will evaluate whether the factual allegations of the complaint for declaratory relief reveal that an actual controversy exists between the parties. (*D. Cummins, supra*, 246 Cal.App.4th at p. 1489.)

Fundamentally, it is unclear what rights and duties Cross-Complainants are raising with respect to itself and Cross Defendants, and there are no specific facts alleged showing a proper subject of declaratory relief and an actual controversy. Cross-Complainants have not pleaded the necessary elements to state a claim for declaratory relief.

Therefore, the Court sustains the demurrer to the third cause of action for declaratory relief with leave to amend.

Fourth Cause of Action for Negligence

For a claim of negligence, the plaintiff must prove (1) legal duty, (2) breach of the legal duty, (3) causation, and (4) damages. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.) An employer may be liable for negligent hiring, retention, supervision, and/or training if he knows or should know an employee is unfit, and because of the unfitness, the employee creates a risk with that risk materializing. (*Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038, 1054.)

The Cross Complaint fails to state any elements in order show a cause of action for negligence; therefore, the Court sustains the demurrer to the fourth cause of action.

RULING

The Court rules as follows:

1. Sustains the demurrer to the First, Second, Third and Fourth Causes of action with leave to amend;
2. Orders Plaintiff to file the First Amended Cross Complaint within 14 days of the Court's final ruling; and
3. Orders Cross Defendant Humble Homes, as the prevailing party, to give formal notice of the Court's ruling.

Dated: April 26, 2026

Judge Nicole Quintana Winter